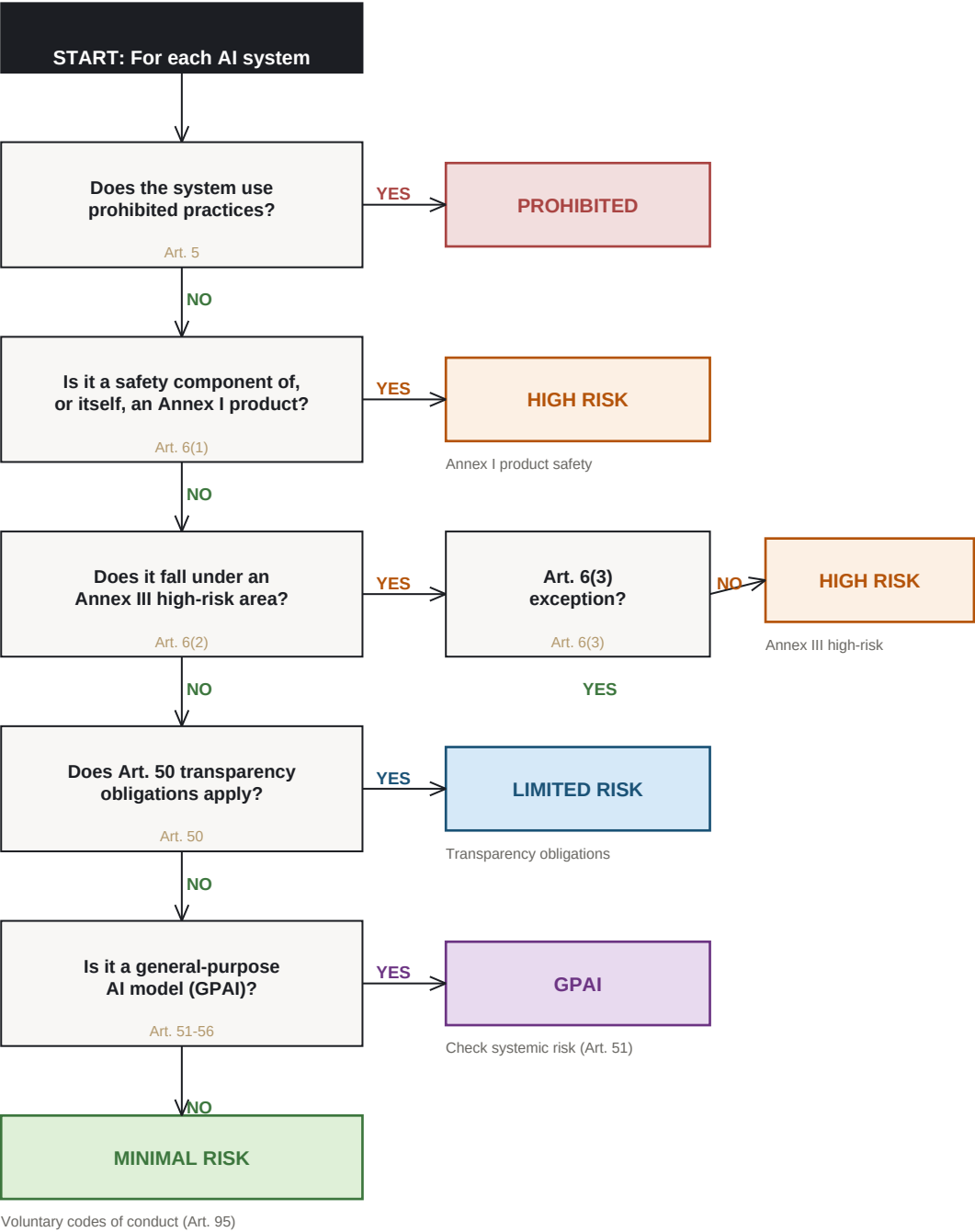


Risk Classification Decision Tree

Follow this flowchart to determine the EU AI Act risk level for each AI system in your inventory.



ANNEX III HIGH-RISK AREAS

1. Biometrics (remote identification, categorisation)
2. Critical infrastructure (energy, transport, water, digital)
3. Education and vocational training (access, assessment)
4. Employment (recruitment, screening, HR decisions)
5. Essential services (public assistance, healthcare access, housing, credit scoring, insurance, social benefits, emergency dispatch)
6. Law enforcement (risk assessment, polygraph, evidence evaluation)
7. Migration and border control (risk assessment, document verification)
8. Justice and democracy (legal research, sentencing influence)

Risk Classification Worksheet

Complete one worksheet per AI system. Refer to the Decision Tree (page 1) for guidance.

SYSTEM IDENTIFICATION

System ID: _____

Date of Assessment: _____

System Name: _____

Assessed By: _____

1 PROHIBITED PRACTICES CHECK

Article 5

Does this AI system involve any prohibited practices?

Social scoring, real-time remote biometric identification in public spaces (with law enforcement exceptions), emotion recognition in workplace/education, biometric categorisation inferring sensitive attributes (race, gender, political opinions), untargeted facial image scraping, exploitation of vulnerabilities, subliminal manipulation causing harm, predictive policing based solely on profiling (Art. 5(1)(d)).

- ☐ Yes → STOP: System is PROHIBITED. Do not deploy.
- ☐ No → Continue to Step 2

2 PRODUCT SAFETY / ANNEX I

Article 6(1)

Is this AI system a safety component of, or itself a product covered by, EU harmonised legislation listed in Annex I?

Machinery, toys, lifts, medical devices, vehicles, aviation, marine equipment, railway, civil aviation security.

- ☐ Yes → HIGH RISK (Annex I). Conformity assessment per product legislation may apply.
- ☐ No → Continue to Step 3

3 ANNEX III HIGH-RISK AREAS

Article 6(2)

Does the system's intended purpose fall under one of the 8 Annex III high-risk areas? (See page 1)

Biometrics, critical infrastructure, education, employment/HR, essential services (public assistance, healthcare access, housing, credit scoring, insurance, social benefits, emergency dispatch), law enforcement, migration, justice.

- ☐ Yes → Check Step 3b (exception test)
- ☐ No → Continue to Step 4

3b ANNEX III EXCEPTION TEST

Article 6(3)

Does the system meet ALL of these exception conditions?

(a) Performs a narrow procedural task, OR (b) Improves the result of a previously completed human activity, OR (c) Detects decision-making patterns without replacing human assessment, OR (d) Performs a preparatory task. Note: Annex III systems that profile natural persons are ALWAYS high-risk — exceptions do not apply.

- ☐ All conditions met + no profiling → NOT high-risk. Continue to Step 4.
- ☐ Exception does NOT apply → HIGH RISK (Annex III)

4

TRANSPARENCY OBLIGATIONS

Article 50

Does any of the following apply to this system?

(a) Interacts directly with humans — chatbot, virtual assistant (Art. 50(1)), (b) Generates synthetic content requiring machine-readable marking (Art. 50(2)), (c) Performs emotion recognition or biometric categorisation (Art. 50(3)), (d) Generates deepfakes requiring disclosure (Art. 50(4)).

- ☐ Yes → LIMITED RISK. Transparency disclosure required.
- ☐ No → Continue to Step 5

5

GENERAL-PURPOSE AI MODEL

Articles 51-56

Is this a general-purpose AI model (GPAI)?

Large language models, foundation models, multimodal models that can be adapted to a wide range of tasks. Note: Determine if you are a Provider, Deployer, or using a GPAI model as a component.

- ☐ Yes, Provider → GPAI obligations apply (Art. 53).
- ☐ Yes, systemic risk → Additional obligations (Art. 55).
- ☐ No → MINIMAL RISK. Voluntary codes of conduct (Art. 95).

CLASSIFICATION RESULT

Final Risk Level: ☐ Prohibited ☐ High ☐ Limited ☐ GPAI ☐ Minimal

Key Article References: _____

Notes / Justification: _____

ACTION PLANNING

Based on the classification result above, document your next steps.

Key Obligations: _____

Compliance Deadline: _____

Responsible Person / Team: _____

Conformity Assessment Required? _____

FRIA Required? (Art. 27): _____

EU Database Registration? (Art. 49): _____

Priority Actions (next 30 days): _____

REVIEW & SIGN-OFF

Reviewed by: _____ Date: _____

Approved by: _____ Date: _____

Risk Level Quick Reference

Summary of obligations by risk level under the EU AI Act (Regulation (EU) 2024/1689)

Risk Level	Key Obligations	Deadline	Penalty
Prohibited (Art. 5)	System must not be placed on market or put into service. No exceptions unless specifically listed in Art. 5.	In force (2 Feb 2025)	Up to €35M or 7% turnover
High Risk (Art. 6 + Annex I/III)	Risk management system (Art. 9) · Data governance (Art. 10) Technical documentation (Art. 11) · Record-keeping (Art. 12) Transparency to deployers (Art. 13) · Human oversight (Art. 14) Accuracy/robustness (Art. 15) · Conformity assessment (Art. 43) EU database registration (Art. 49) · Post-market monitoring (Art. 72) Serious incident reporting (Art. 73) — 15/10/2 day deadlines FRIA (Art. 27) — public bodies + public-service providers + financial	Annex III: 2 Aug 2026 Annex I: 2 Aug 2027	Up to €15M or 3% turnover
Limited Risk (Art. 50)	Transparency disclosure: inform users of AI interaction (Art. 50(1)) Mark synthetic content as AI-generated in machine-readable format (Art. 50(2)) Disclose emotion recognition/biometric categorisation (Art. 50(3)) Disclose deepfakes (Art. 50(4))	2 Aug 2026	Up to €15M or 3% turnover
GPAI (Art. 51-56)	Provider: technical documentation, copyright compliance, training data summary (Art. 53) Systemic risk: model evaluation, adversarial testing, serious incident reporting, cybersecurity (Art. 55) Open source: reduced obligations (Art. 53(2))	In force (2 Aug 2025)	Up to €15M or 3% turnover
Minimal Risk (Art. 95)	No mandatory obligations. Voluntary codes of conduct encouraged. AI literacy recommended (Art. 4).	N/A	N/A

NOTE FOR SMEs AND STARTUPS

Article 99(6): For SMEs and startups, penalties are the same amounts/percentages but whichever is LOWER (not higher). This provides proportional protection for smaller organisations.

DIGITAL OMNIBUS (PROPOSED)

If adopted, may extend Annex III deadline to max 2 Dec 2027. Status: under legislative procedure, NOT yet adopted. Monitor status.